

# Swansea Corporation (Fairwood Common) Act, 1956

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## CHAPTER xli

An Act to make provision for the extinguishment of certain common or commonable rights and other rights in respect of part of Fairwood Common in the county of Glamorgan and for the determination payment and apportionment of the compensation money payable in respect of such extinguishment to extend the powers conferred on the mayor aldermen and burgesses of the county borough of Swansea by the Civil Aviation Act 1949 and for other purposes. [28th March 1956.]

**W**HEREAS by a conveyance dated the thirty-first day of October nineteen hundred and thirty-eight made between Arthur Owen Thomas of Kilvrough in the parish of Pennard in the county of Glamorgan of the one part and the mayor aldermen and burgesses of the county borough of Swansea (hereinafter in this Act referred to as "the Corporation") of the other part a piece or parcel of land being part of the waste lands of the manors of Gower Anglicana and Bishopston in the county of Glamorgan commonly known as Fairwood Common (hereinafter in this Act referred to as "the common") and having an area of one thousand one hundred and twenty-two acres or thereabouts was conveyed to the Corporation in fee simple except and reserved as therein mentioned:

And whereas possession of part of the common comprising five hundred and sixty-eight acres or thereabouts was taken on behalf of His Late Majesty King George the Sixth under the Defence (General) Regulations 1939 made under the Emergency Powers (Defence) Act 1939 and such part was used for an aerodrome for the public service and a number of aircraft runways buildings and other structures have been constructed thereon:



And whereas since the aerodrome is no longer required by the Secretary of State the Corporation are intending to exercise the powers conferred upon them by the Civil Aviation Act 1949 (hereinafter in this Act referred to as "the Act of 1949") and to establish an aerodrome undertaking which will comprise a portion of the said part of the common:

And whereas to enable the portion of the said part of the common to be used by the Corporation as an aerodrome it is expedient that all common and commonable rights and other rights in respect of the said portion of the common should be extinguished:

And whereas it is expedient that the provisions contained in this Act should be made for the determination payment and apportionment of the sum payable as compensation for the extinguishment of the said common and commonable rights and other rights:

And whereas it is expedient to extend the powers conferred on the Corporation by the Act of 1949 as in this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas a plan showing the lands in respect of which common or commonable rights and other rights may be extinguished under the powers of this Act and a book of reference to that plan containing the names of the owners and lessees or reputed owners or lessees and of the occupiers of those lands were duly deposited with the clerk of the administrative county of Glamorgan:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Swansea Corporation (Fairwood Common) Act 1956.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires—

"the Act of 1947" means the Town and Country Planning Act 1947;

"the Act of 1949" means the Civil Aviation Act 1949;

"the appointed day" means the last day of a period of one month beginning on the passing of this Act;

- “ the committee ” means the committee appointed under subsection (1) of section 5 (Appointment of committee) of this Act ;
- “ the common ” means the land called or known as Fairwood Common situate in the parishes of Llanrhidian Higher Ilston Pennard and Bishopston in the rural district of Gower in the county of Glamorgan ;
- “ the common rights ” means all common or commonable and other rights in to or over the specified lands including all rights (if any) of recreation exercise or access attaching thereto but does not include any private rights of way ;
- “ the Corporation ” means the mayor aldermen and burgesses of the county borough of Swansea ;
- “ the compensation money ” means the sum which in accordance with the provisions of this Act is to be paid as compensation for the extinguishment of the common rights ;
- “ the county council ” means the county council of the administrative county of Glamorgan ;
- “ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 the Act of 1947 the Lands Tribunal Act 1949 and the Town and Country Planning Act 1954 ;
- “ the Minister ” means the Minister of Transport and Civil Aviation ;
- “ the signed plan ” means the plan signed in quadruplicate by the Right Honourable the Lord Ailwyn the chairman of the committee of the House of Lords to whom the Bill for this Act was referred of which one copy has been deposited at the office of the Clerk of the Parliaments House of Lords one copy in the Private Bill Office of the House of Commons one copy with the clerk of the county council and one copy with the town clerk ;
- “ the specified lands ” means so much of the common as is shown on the signed plan as being the part in respect of which the common rights are to be extinguished ;
- “ the town clerk ” means the town clerk of the county borough of Swansea ;
- “ the valuer ” means the valuer or other fit person to be appointed by the Minister of Agriculture Fisheries and Food under subsection (1) of section 6 (Apportionment of amount of compensation) of this Act.



(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

Extinguishment  
of common  
rights.

3. As from the appointed day the common rights shall be and are hereby extinguished and the specified lands shall for all purposes cease to form part of the common.

Compensation  
for  
extinguishment  
of common  
rights.

4.—(1) As compensation for the common rights extinguished by this Act the Corporation shall pay such sum representing the value under the Lands Clauses Acts of those rights as may be agreed between the Corporation and the committee or in default of agreement determined by the Lands Tribunal as if the Corporation had been authorised to acquire the common rights by an enactment incorporating the Lands Clauses Acts and as if the claim of the committee for compensation, in respect of the extinguishment of the common rights were a claim for the injurious affection of land.

(2) (a) The compensation money together with interest thereon from the appointed day to the date of payment at such rate or rates per centum per annum in relation to such periods as may from time to time be prescribed by regulations made by the Treasury for the purposes of section 57 of the Act of 1947 shall be divided among such persons and in such proportions as may be specified in the award to be made by the valuer pursuant to section 6 (Apportionment of amount of compensation) of this Act.

(b) The receipts in writing of the persons stated in the said award or of their personal representatives for the respective amounts stated therein as being the respective shares in the compensation money together with such interest as aforesaid to which such persons are entitled shall discharge the Corporation from all liability for the payment of the sums thereby expressed to be received:

Provided that if from any cause the Corporation are unable to obtain the receipt in writing of any such person or his personal representative they may lodge the sum of money to which such person is entitled in the Supreme Court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 and a certificate given in accordance with those rules stating that such money has been so lodged shall effectively relieve and discharge the Corporation from all liability for the payment of such sum.

Appointment  
of committee.

5.—(1) The committee shall be appointed at a meeting of such persons entitled to exercise the common rights as attend the meeting and shall consist of not more than five persons:

Provided that no person shall be qualified for appointment as a member of the committee unless he is entitled to exercise some or all of the common rights.

(2) The meeting shall be held at some convenient place in the rural district of Gower and shall be convened by the town clerk by means of a notice published once at least in each of two successive weeks in some local newspaper circulating in the county of Glamorgan being the same newspaper in each case the first of such insertions being not later than one month after the appointed day and the last of such insertions being not more than fourteen or less than seven days before the date of the meeting.

(3) Any decision taken at the meeting shall be by a simple majority of those present and voting and shall be binding not only on the minority of those present but also on all absent parties.

(4) If no effective meeting takes place or if at the meeting no committee is appointed or if the appointment of the committee is invalid in any respect the amount of the compensation money shall be determined in accordance with section 106 of the Lands Clauses Consolidation Act 1845 as amended by subsection (6) of section 1 of the Lands Tribunal Act 1949.

6.—(1) As soon as may be after the amount of the compensation money has been agreed or (as the case may be) been determined whether under subsection (1) of section 4 (Compensation for extinguishment of common rights) of this Act or under subsection (4) of the last foregoing section of this Act the Minister of Agriculture Fisheries and Food shall appoint a valuer or other fit person for the purpose of ascertaining and determining the persons who are entitled to compensation in respect of the extinguishment of the common rights and the amount or value of their respective shares rights and interests therein and the proportionate amount of the compensation money together with such interest as aforesaid to which each such person is entitled in respect of his share right or interest.

Apportionment  
of amount of  
compensation.

(2) The provisions of sections 17 18 19 and 20 of the Inclosure Act 1854 are hereby incorporated and shall extend and apply for the purposes of such ascertainment and determination as if the compensation money had been paid into the Bank of England pursuant to section 16 of that Act:

Provided that for the purposes of such incorporation the said sections shall be read and have effect as if references to the valuer were substituted therein for the references to the inclosure commissioners and assistant commissioner mentioned in those sections.



(3) Notwithstanding anything in the said sections of the Inclosure Act 1854 as so incorporated—

(a) the valuer may for the purpose of ascertaining the names of the persons entitled to exercise the common rights publish a notice in a local newspaper and in such other manner as he may think best adapted for informing the persons who claim to be entitled to exercise the common rights of his intention of considering such claims and such notice shall—

(i) specify the address to which the claims are to be sent ; and

(ii) state that the valuer is prepared to receive and consider any such claims which may be submitted to him within such period after the date of the publication of the notice not being less than three months as may be specified in the notice ;

(b) any claims received by the valuer at or after the expiration of the period so specified shall be deemed to have been rejected.

(4) (a) If any doubt question or dispute shall arise as to the right or title of any person who claims to be entitled to exercise any of the common rights the valuer may refer such doubt question or dispute for determination by one of the conveyancing counsel of the High Court and the determination of such counsel shall be conclusive and binding for all purposes.

(b) The costs and expenses of and incidental to the reference to and determination by one of the conveyancing counsel of the High Court of any such doubt question or dispute as aforesaid shall be paid by the Corporation.

(5) The valuer shall in his award state the names and addresses of the persons entitled to share in the compensation money together with such interest as aforesaid and the sum to which each of such persons is so entitled.

Extinguishment  
of rights of way  
over specified  
lands.

7.—(1) Upon the extinguishment of the common rights by virtue of section 3 (Extinguishment of common rights) of this Act the Corporation may subject to the provisions of this Act—

(a) enclose all or any part of the specified lands and exercise in respect thereof any of the powers conferred on them by the Act of 1949 and by this Act ; and

(b) stop up all or any roads paths and ways in on or over the specified lands and thereupon all rights of way over or along any such road path or way so stopped up shall be extinguished.

(2) Any person who suffers loss by the extinguishment of any private right of way under this section shall be entitled to be paid

by the Corporation compensation to be determined in case of dispute under and in accordance with the provisions of the Lands Clauses Acts.

8.—(1) In the event of the Corporation establishing in pursu-  
ance of sections 19 and 20 of the Act of 1949 an aerodrome and  
any ancillary business in connection therewith (in this section  
referred to as “the aerodrome undertaking”) they may them-  
selves manage or provide for the management of the aerodrome  
undertaking and such reasonable charges as may be thought fit  
may be made in respect thereof: Aerodrome  
undertaking.

Provided that nothing in this subsection shall authorise any  
variation of a scale of charges prescribed by the Minister in  
pursuance of powers conferred on him by or under the said Act.

(2) (a) The Corporation may make byelaws for regulating the  
use of the aerodrome undertaking and for securing the public  
against danger arising from that use.

(b) As respects any such byelaws the confirming authority for  
the purpose of section 250 of the Local Government Act 1933  
shall be the Minister who may cause such local inquiries to be  
held as he may consider necessary for the purpose of his func-  
tions as such confirming authority and subsections (2) to (5) of  
section 290 of the said Act of 1933 shall apply in relation to  
any such local inquiry.

(3) The powers conferred on the Corporation by this section  
shall be in addition to and not in derogation of the powers  
conferred on them by the Act of 1949 but nothing in this section  
shall prejudice or affect the powers of the Minister under the said  
Act:

Provided that the consent of the Minister of Housing and  
Local Government shall also be required to any appropriation or  
disposal of the specified lands or any part thereof under sub-  
section (6) of section 19 of the said Act.

9.—(1) Subject to the modifications specified in subsection (2) Application  
of certain  
provisions  
of Civil  
Aviation Act  
1949 to  
specified lands.  
of this section—

(a) the provisions of section 24 of the Act of 1949 shall  
apply to the specified lands as they apply to any land  
which is vested in the Minister or which the Minister  
proposes to acquire;

(b) any other provision in the Act of 1949 which has effect  
in relation to the said section 24 shall have the like  
effect in relation to that section as applied by this  
section.



(2) The modifications referred to in the preceding subsection are—

(a) orders under the said section 24 may be made upon the application of the Corporation but not otherwise ;

(b) in relation to the application of the said section 24—

(i) subsection (1) shall have effect as if the words “in favour of the Corporation” were substituted for the words “in his favour” ;

(ii) subsection (4) shall have effect as if for the words “the Minister” there were substituted the words “the Corporation” ;

(iii) subsection (5) shall have effect as if the words “or the Corporation” were inserted after the words “the Minister” ;

(iv) subsection (9) shall have effect as if the words “by the Corporation or” were inserted after the words “be instituted except” where they first occur ;

(v) the following subsection shall be substituted for subsection (10):—

“(10) When such an offence as aforesaid has been committed by a body corporate and is proved to have been committed with the consent or connivance or to be attributable to any neglect on the part of any director manager secretary or other similar officer of the body corporate or any person purporting to act in that capacity he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

In this subsection the expression ‘director’ includes any person occupying the position of director by whatever name called.”

(c) section 29 of the Act of 1949 shall have effect as if—

(i) for the words “a Minister” and “that Minister” there were substituted the words “the Minister” ;

(ii) paragraphs (a) and (c) of subsection (1) were omitted and in paragraph (b) of that subsection for the words “in his favour” there were substituted the words “in favour of the Corporation” ;

(iii) in subsection (1) after the words “has under consideration the making of” there were inserted the words “or the Corporation has under consideration making an application for” ;

(iv) in subsection (1) after the words “that Minister” there were inserted the words “or the

Corporation" and for the words "the Minister requires" there were substituted the words "the Minister or the Corporation require";

(v) in subsection (1) after the words "should be made" there were inserted the words "or applied for";

(vi) in subsection (3) the words "by the Corporation or" were inserted after the words "be instituted except" where they first occur;

(vii) in subsection (5) for the words "by whom the authority was given" there were substituted the words "or the Corporation (as the case may be)";

(d) section 33 of the Act of 1949 shall have effect as if paragraphs (b) and (c) of subsection (1) were omitted and as if in subsection (2) for the words "the Minister" there were substituted the words "the Corporation";

(e) the First Schedule to the Act of 1949 shall have effect as if—

(i) the following paragraphs were substituted for paragraphs 1 and 2—

"1. Before making an application for an order the Corporation—

(a) shall publish in one or more newspapers circulating in the district in which the land is situated; and

(b) shall serve on every owner lessee and occupier of any of the land and upon every local authority within whose area any of the land is situated;

a notice stating that the Corporation propose to apply for the order and the effect thereof and specifying the time (not being less than twenty-eight days from the service of the notice) within which and the manner in which objections to the making of the order may be made;

2. If no objection is duly made by any such local authority, owner lessee or occupier as aforesaid or if all objections so made are withdrawn, the Minister may, upon being satisfied that the proper notices have been published and served, and if he thinks fit, make the order."

(ii) in paragraphs 5 9 11 and 12 for references to "the Minister" there were substituted references to "the Corporation".



For protection  
of county  
council.

10. For the protection of the county council the following provisions shall unless otherwise agreed in writing between the Corporation and the county council apply and have effect:—

- (1) Notwithstanding anything in section 7 (Extinguishment of rights of way over specified lands) of this Act the Corporation shall not stop up any footpath to which this section relates except in accordance with the provisions of this section:
- (2) Not less than twenty-eight days before stopping up any footpath to which this section relates the Corporation shall serve notice on the county council of their intention so to do and if within twenty-one days after the receipt of that notice the county council require a new footpath to be substituted for the footpath to be stopped up and notify the Corporation of the route to be followed by such new footpath the Corporation shall not stop up the footpath unless it is agreed or determined by arbitration as hereinafter in this section provided that no new footpath should be so substituted or if it is agreed or determined by arbitration as aforesaid that a new footpath should be so substituted until such new footpath has been provided in accordance with the provisions of this section and is open for public use:
- (3) The route of any new footpath to be provided by the Corporation in substitution for a footpath to which this section relates shall be agreed between the Corporation and the county council or in default of agreement settled by arbitration and the said footpath shall be constructed by the Corporation to such a standard as having regard to the standard of the footpath for which it has been substituted may be reasonably required by the county council:  

Provided that before requiring or agreeing the route to be followed by any such new footpath the county council shall consult with the rural district council of Gower and (as the case may require) the parish meeting of Ilston or the parish council of Pennard:
- (4) The arbitrator in determining any question under the two last foregoing subsections of this section shall have regard to the safe and efficient user of the specified lands for the purposes of civil aviation:
- (5) Any new footpath provided by the Corporation in accordance with the provisions of this section shall be repairable by the authority or person by whom it was repairable before its diversion:

- (6) The foregoing provisions of this section relate to any part of the footpaths coloured green on the signed plan:
- (7) Subject as hereinafter in this subsection provided the Corporation shall within twelve months from the date on which permission is granted under the Act of 1947 for the development of the specified lands for the purposes of civil aviation carry out to the reasonable satisfaction of the county council the operations indicated on the plan signed in duplicate by Edmund Arthur Bland on behalf of the county council and by Reuben Dudley Moody on behalf of the Corporation one copy of which has been deposited with the clerk of the county council and the other with the town clerk with respect to the buildings or structures shown on the said plan as being subject to those operations:

Provided that the Corporation shall not be bound to incur expenditure in excess of five hundred pounds in complying with the requirements of this subsection.

- (8) If the existing runways on the common are incorporated by the Corporation with the aerodrome undertaking established by them on the specified lands then subject to the provisions of the Act of 1949 and any regulations made thereunder the said runways shall be so marked in a manner to be reasonably approved by the county council so as clearly to indicate that they are not to be used by aircraft for such distance (not exceeding a distance of seven hundred and fifty feet measured along each such runway from the western boundary for the county road A.4118) as may reasonably be required by the county council to provide for the safe user by the public of the said road:
- (9) No means of access other than the existing access road shall be provided to or from the specified lands from or to the said county road A.4118:
- (10) Before erecting any fences on the specified lands the Corporation shall consult the county council both as regards the area to be fenced and the type of fence to be erected:
- (11) Any matter which under this section is to be referred to arbitration and any question dispute or difference which may arise between the Corporation and the county council (other than one relating to the interpretation of this section) shall be referred to a single arbitrator to be appointed by agreement between the county council and the Corporation or in default of agreement



by the Minister and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to any such arbitration:

- (12) In this section "purposes of civil aviation" has the same meaning as in the Act of 1949 and "development" has the same meaning as in the Act of 1947.

Specified lands  
to become an  
open space in  
certain  
circumstances.

11.—(1) If at any time after a period of five years beginning on the appointed day the local interests are of the opinion either that no aerodrome undertaking has ever been established on the specified lands or that such an undertaking having been established has since been either wholly or substantially abandoned they may serve notice on the Corporation to that effect and if the Corporation by counter-notice dispute the claim of the local interests the issue shall be referred to and determined by the Minister:

Provided that—

- (a) if no counter-notice is served within twenty-eight days of the receipt by the Corporation of a notice by the local interests under this subsection the aerodrome undertaking shall be deemed never to have been established or to have been abandoned (as the case may require);
- (b) the aerodrome undertaking shall not be deemed to have been wholly or substantially abandoned until a period of five years has elapsed since the user of the specified lands as part of such undertaking wholly or substantially ceased.

(2) As from one month after the date on which the said aerodrome undertaking is deemed or determined by the Minister never to have been established or to have been abandoned (as the case may be) the specified lands shall be held by the Corporation for the purpose of being preserved as an open space for the enjoyment of the public under the Open Spaces Act 1906 and the provisions of that Act shall apply to the specified lands as if they had been acquired by the Corporation thereunder.

(3) In this section "the local interests" means the voluntary association known as the Gower Society or any twenty rate-payers in so much of the rural district of Gower as is comprised within the parishes of Ilston and Pennard.

Power to  
borrow.

12.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay any sum so borrowed within such

periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table (namely):—

| 1                                                                                                                                                                   | 2                 | 3                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|-----------------------------------------------------------------------------------------------------|
| Purpose                                                                                                                                                             | Amount            | Period for repayment calculated (except where otherwise stated) from the date or dates of borrowing |
| (a) The payment of the compensation money and of any costs charges and expenses incurred by the Corporation in the determination payment and apportionment thereof. | The sum requisite | Five years                                                                                          |
| (b) The purchase of buildings and installations on the specified lands and the cost of constructing and repairing works thereon.                                    | £20,000           | Fifteen years                                                                                       |
| (c) The payment of the costs charges and expenses of this Act.                                                                                                      | The sum requisite | Five years from the passing of this Act.                                                            |

(2) The provisions of Part IX of the said Act of 1933 so far as they are not inconsistent with this part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of any money borrowed shall as respects that money be the fixed period for the purposes of the said Part IX.

13. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.

14. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

15. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation. Costs of Act.



*Table of Statutes referred to in this Act*

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| Lands Clauses Consolidation Act 1845 ... ..                      | 8 & 9 Vict. c. 18        |
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| Civil Aviation Act 1949 ... ..                                   | 12, 13 & 14 Geo. 6 c. 67 |
| Town and Country Planning Act 1954 ... ..                        | 2 & 3 Eliz. 2 c. 72      |

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